



Pakistan: International Child Custody

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Contents

I. Introduction and Jurisdictional Issues.....	1
II. Custody Rules.....	2
A. Custody and Muslim Personal Law	2
B. Custody and Best Interest of the Child	3
III. International Child Abduction.....	5
IV. Conflict of Laws/Private International Law.....	6

Pakistan: International Child Custody

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SUMMARY In Pakistan, custody rules are determined by the personal status laws of the persons involved. For Muslims, the courts rely on uncodified Islamic law to determine the physical custody and guardianship of a child, subject to the paramount consideration of the welfare of the child. Under Islamic law, the father is considered a child's natural guardian. However, under the rules of *hizanat*, or a mother's right to physical custody as established by Hanafi Muslim personal law, a mother has this right over her male child until the age of seven and over her female child until the child reaches puberty. It should be noted that the courts in Pakistan have at times deviated from Hanafi jurisprudential rules when it is in the best interest of the child.

Although there are many Pakistani court decisions on the recognition of foreign custody court orders and judgments (the "principle of comity of courts"), we were unable to find any concerning whether foreign custody law or domestic law is applied in cases where foreign Afghan citizens are resident in Pakistan. Most of the cases involve parents abducting a child or custody disputes involving Pakistani and foreign or dual citizenship nationals.

I. Introduction and Jurisdictional Issues

In Pakistan, custody rules are determined by the personal status laws of the persons involved. If the persons concerned are Muslims, then under section 2 of the West Pakistan Muslim Personal Law (Shariat) Application Act 1962, Muslim personal law is applicable.¹

Court orders for custody and guardianship in Pakistan are made according to the Guardians and Wards Act, 1890.² Section 9 of the act requires that an application "be made to the District Court having jurisdiction in the place where the minor ordinarily resides."³ However, it appears that the West Pakistan Family Courts Act, 1964,⁴ has overriding application on the issue of territorial jurisdiction. It states, "A Family Court shall be deemed to be a District Court for the purposes of the Guardians and Wards Act, 1890 and notwithstanding anything contained in this Act, shall, in dealing with matters specified in that Act, follow the procedure prescribed in that Act."⁵ Section

¹ West Pakistan Muslim Personal Law (Shariat) Application Act, No. 5 of 1962, § 2, <https://perma.cc/WT7A-RRDX>.

² Guardians and Wards Act, No. 8 of 1890, <https://perma.cc/AM89-3G8X>.

³ Id. § 9.

⁴ Each province has adopted and adapted the West Pakistan Family Courts Act. See West Pakistan Family Courts Act, 1964 (as adapted for the province of Khyber Paktunkwa), <https://perma.cc/EH3E-VW2Y>; Family Courts Act, 1964 (as adapted for the province of Punjab) <https://perma.cc/3U3R-79LV>.

⁵ Id. § 25.

5 of the act gives family courts exclusive jurisdiction to entertain, hear, and adjudicate upon matters stipulated in the Schedule of the Act, which includes custody and guardianship issues.⁶ Rule 6 of the West Pakistan Family Court Rules, 1965, provides that the Family Court “shall have jurisdiction to try a suit will be that within the local limits of which (a) the cause of action wholly or in part has arisen or (b) where the parties reside or last resided together.”⁷

II. Custody Rules

A. Custody and Muslim Personal Law

For Muslims, the courts rely on uncodified Islamic law to determine the physical custody and guardianship of the child, subject to the paramount consideration of the welfare of the child.⁸ Courts may take into account the rules and requirements of the particular sect or *madhab* (school of jurisprudence) to which the parties belong.

Under Islamic law, there is a distinction between the terms *hizanat* (also called *hadanah* or *hidāna*) and *wilayah*. *Hizanat* “concerns the right to physical custody of the child whereas *wilayah* is guardianship of the person and property of the child.”⁹

Under Islamic law, the father is considered a child’s natural guardian. However, under the rules of *hizanat*, or a mother’s right to physical custody as established by Hanafi Muslim personal law, a mother has this right over her male child until the age of seven and over her female child until the child reaches puberty. At that point, custody of the child is passed to the father and “[t]he father’s custody continues until puberty for a boy and not just until puberty for a girl, but rather until she can safely be left to herself and trusted to take care of herself.”¹⁰ In the absence of a father, the next in line is the paternal grandfather, a brother, and finally a paternal uncle.

Under Shia Law, the mother has a right to custody of her male child until he is weaned (or at the age of two) and her female child until the age of seven years.¹¹

However, a mother’s right to *hizanat* does not appear to be absolute and is subject to certain conditions, including the mother’s legal capacity, trustworthiness, and marital status during the period of custody. Under Islamic law, a “mother or any other female relative who has the custody of a child loses this right upon her marriage to a man who is not related to the child within the

⁶ Id. § 5 & sched.

⁷ West Pakistan Family Courts Rules, 1965 (as adapted for the province of Khyber Paktunkwa), R. 6, <https://perma.cc/J9QX-ND9S>.

⁸ Shabnam Ishaque & Muhammad Mustafa Khan, *The Best Interests of the Child: A Prevailing Consideration Within Islamic Principles and a Governing Principle in Child Custody Cases in Pakistan*, 29 Int’l J. L., Pol’y & Fam. 79 (2015), <https://perma.cc/FU8Y-QU84> (by subscription).

⁹ Id. at 78.

¹⁰ Ayesha Shahid & Isfandiyar Ali Khan, *Pakistan, in Pakistan Parental Care and the Best Interests of the Child in Muslim Countries* 174 (T.M.C. Asser Press, The Hague, 2017), https://doi.org/10.1007/978-94-6265-174-6_7.

¹¹ Muhammad Zubair Abbasi & Shahbaz Ahmad Cheema, *Family Laws in Pakistan* 219 (Oxford University Press, 2018).

prohibited degree of marriage.”¹² If a mother dies or loses the right to *hizanat*, the following relatives are entitled to custody of the minor: the mother’s mother, father’s mother, full sister, uterine sister (half-sister by the same mother), consanguine sister (half-sister by the same father), full sister’s daughter, uterine sister’s daughter, consanguine sister’s daughter, maternal aunt, and paternal aunt.¹³ After that, *hizanat* passes to certain male relatives.

B. Custody and Best Interest of the Child

In 1987, the Supreme Court of Pakistan in *Mst. Feroze Begum v. Lt. Col. Muhammad Hussain* established the “principle that the paramount and overriding consideration in the custody cases” is the welfare of the minor.

[t]he overriding and paramount consideration always is the welfare of the minor. Indeed this is the sole consideration that must prevail in the final analysis and the fact that the father is the lawful guardian of his minor children does not compel the Court to pass an order in his favour unless it is in their welfare to do so.

The welfare of a minor means his material, intellectual, moral and spiritual well-being.¹⁴

It should be noted that Pakistani courts have deviated from classical Hanafi jurisprudence and “have based their judgments on the ‘Best Interests of the Child’ principle.”¹⁵ The authors of an article on cross-border child abduction note that, regarding Pakistan, “A brief discussion of recent case law suggests that while historical Islamic legal rulings on *hidāna* inform the judicial determination of a child’s welfare, those rules are not determinative and can be overridden when the welfare of the child requires another custodial arrangement.”¹⁶

For example, in a 2003 decision, the Supreme Court of Pakistan held that

[t]here is no cavil to the proposition that notwithstanding the right of the mother or father for the custody of male or female child under the personal law, the predominant consideration in determining the question of custody of minor is always the welfare of the minor. . . .

Certainly the general rule that mother on contracting second marriage forfeits her rights of custody of child is not absolute and if the interest of child requires that custody should be retained by the mother, the Court may, in the interest of the welfare of minor, allow the mother to retain the custody of minor but to determine the question of interest of minor, weight must be given to the circumstances to be considered for holding whether the

¹² *Id.*

¹³ *Id.*

¹⁴ *Mst. Feroze Begum v. Lt. Col. Muhammad Hussain*, (1983) SCMR 606, ¶¶ 12-13, <https://perma.cc/CM7L-499P>.

¹⁵ Shahid & Khan, *supra* note 10, at 170; see also Mudasra Sabreen, *Law on the Custody of Children in Pakistan: Past, Present and Future*, 4 Lums L.J., <https://perma.cc/6LQS-2X39>.

¹⁶ Anver M. Emon and Urfan Khaliq, *Private International Law, Islamic Law, and Cross-Border Child Abduction: A Historico-Legal Analysis* 63 (2016), <https://perma.cc/GYU2-V3MF>.

welfare of minor would be in living with the mother or with the father. . . . The primary consideration for determining the question of custody is always the welfare of the minor and there could not be an absolute rule and fixed criteria to determine the question of welfare in the same manner in each case rather it being a mixed question of law and fact is decided in the facts of each case and consequently the factors having only social importance or the desirability of the father or mother to retain the custody of minor, would not overwrite the consideration of welfare in determining the question of custody.¹⁷

In addition, in a 2014 decision, the Supreme Court held that

it is apparent from reading of the two paras of the Muhammadan Law that though the mother is entitled to the custody (Hizanat) of her minor child but such right discontinues when she takes second husband, who is not related to the child within the prohibited degree and is a stranger in which case the custody of minor child belongs to the father. It has been construed by the Courts in Pakistan that this may not be an absolute rule but it may be departed from, if there are exceptional circumstances to justify such departure and in making of such departure the only fact, which the Court has to see where the welfare of minor lies and there may be a situation where despite second marriage of the mother, the welfare of minor may still lie in her custody.¹⁸

Section 17 of the Guardians and Wards Act, 1890, enshrines the principle of the best interest of the child, which Pakistani courts have made their paramount consideration in issuing custody and guardianship orders. Section 17 stipulates as follows:

17. Matters to be considered by the Court in appointing guardian. (1) In appointing or declaring the guardian of a minor, the Court shall, subject to the provisions of this section, be guided by what, consistently with the law to which the minor is subject, appears in the circumstances to be for the welfare of the minor.

(2) In considering what will be for the welfare of the minor, the Court shall have regard to the age, sex and religion of the minor, the character and capacity of the proposed guardian and his nearness of kin to the minor, the wishes, if any, of a deceased parent, and any existing or previous relations of the proposed guardian with the minor or his property.

(3) If the minor is old enough to form an intelligent preference, the Court may consider that preference.

[(4) *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.*]

(5) The Court shall not appoint or declare any person to be a guardian against his will.¹⁹

¹⁷ Seema Chaudhry & Another v. Ahsan Ashraf Shaikh, 2003 PLD 877 (S.C.) 5, <https://perma.cc/4XF7-MLHT>.

¹⁸ Shabana Naz v. Muhammad Saleem, (2014) SCMR343, ¶ 13; extended quotes from this decision can be found at Mst. Hifsa Naseer v. Additional District Judge, Gujar Khan and Others, Writ Petition No. 3149 of 2014, ¶ 8, <https://perma.cc/V437-8HPA>.

¹⁹ Guardians and Wards Act § 17.

Currently, the courts are “following the principle of [the] welfare of [the] minor in the cases of custody while passing orders, whether interlocutory or final.”²⁰

In addition to the factors included in section 17(2) of the Guardians and Wards Act, 1890, the courts consider the stability of the environment and the educational, emotional, and other needs of the child.²¹ In “giving primacy to the child’s welfare, Pakistani law recognizes that the child may be in the best position to determine his or her own interests.”²² According to researcher Cassandra Balchin, while deciding petitions under the Guardians and Wards Act, 1890, “courts have preferred a case by case consideration of the fact rather than rigidly applying the principles of established Muslim Jurisprudence.”²³

III. International Child Abduction

There is no extradition treaty between Afghanistan and Pakistan. Pakistan became a signatory of the Hague Convention on the Civil Aspects of International Child Abduction, 1980, in December 2016, which entered into force in Pakistan on March 1, 2017.²⁴ The “objects of the Convention are to secure the prompt return of the children wrongfully removed or retained and ensure the rights of the children.” To provide domestic effect, the convention was added to the Schedule of the West Pakistan Family Courts Act, 1964, to “bring international child Abduction cases within the jurisdiction of the family court in Islamabad Capital Territory (ICT) and all Provinces of Pakistan including Azad Kashmir and Gilgit Baltistan also done [sic] the same.”²⁵ For the convention to be operational between signatory states, the older member needs to accept the accession of the new member. Afghanistan is not a signatory of the convention, so it is not applicable between the two countries.²⁶

The Pakistan Penal Code (PPC) has a number of offenses relating to kidnapping and abduction, including kidnapping from lawful guardianship.²⁷ Sections 359 to 374 of the PPC deal with the crime of kidnapping and abduction. A habeas corpus petition is also used to recover custody of a child under Pakistan’s Code of Criminal Procedure “where the minors are illegally and

²⁰ Ataullah Khan Mahmood & Ijaz Ali Chishti, *Adjective Law Undermining the Substantive Law (The Hague Convention on the [sic] Child Abduction)*, PLJ Lawsite (June 12, 2012), <https://perma.cc/4EKB-UP5K>.

²¹ Sarmad Ali, *Inter-Country Child Abduction – Pakistan’s Legal Response*, in *Private International Law: South Asian States’ Practice* ¶ 2.6.4 (Sai Ramani Garimella & Stellina Jolly eds., 2017), <https://perma.cc/U2J7-XQWV>.

²² Emon & Khaliq, *supra* note 16, at 66.

²³ Cited by Aayesha Rafiq, *Child Custody in Classical Islamic Law and Laws of Contemporary Muslim World (An Analysis)*, 4(5) *Inter. J. Human. & Soc. Sci.* 267, 272 (Mar. 2014), <https://perma.cc/95NG-83VH>.

²⁴ Hague Convention on the Civil Aspects of International Child Abduction, opened for signature Nov. 25, 1980, 1343 U.N.T.S. 89 (entered into force Mar. 1, 2017), <https://perma.cc/2QMG-NM85>.

²⁵ *Convention on International Child Convention*, Ministry of Law & Justice, <https://perma.cc/KQL9-5NKR>.

²⁶ Status Table, Hague Conference on Private International Law (HCCH), <https://perma.cc/U5ER-5NSU>.

²⁷ *Provisions Related to Human Trafficking from the Pakistan Penal Code*, Society for Enforcement of Rule of Law, <https://perma.cc/5P5W-UKHM>.

improperly removed from the custody of his/her [sic] parents. The courts return the custody of a minor to the parent from whom the custody was illegally and improperly removed.”²⁸

Generally, a case of child abduction by a parent is perceived as a civil dispute as opposed to a criminal offense.

The judiciary, in various cases, opined that parents could not be held responsible for the offence of abduction of their children. The leading case on this point is *Muhammad Ashraf v SHO and others* 26 in which the court held that a parent couldn't be punished for abducting his own child. However, there was an instance where the Federal Shariat Court of Pakistan in *Mst Asia Bibi v Alam Khan* 27 maintained a view that a father was held liable for abduction his daughter from lawful custody of her maternal uncle and maternal grandfather. It could thus be stated that the law relating to child custody is uneven, and courts have demonstrated favour for the opinion that a parent couldn't be viewed an abductor of his child.²⁹

IV. Conflict of Laws/Private International Law

Although there are many Pakistani court decisions on the recognition of foreign custody court orders and judgments,³⁰ (the “principle of comity of courts”³¹), we were unable to find any concerning whether foreign custody law or domestic law is applied where foreign Afghan citizens are resident in Pakistan. Most of the cases involve the “problem of international parental child abduction to Pakistan along with the applicable Pakistani law in custody disputes involving both Pakistani and foreign/ dual nationals.”³² However, an article in the periodical *Dawn* states, “if the child was born in a country other than Pakistan and has been given foreign nationality, then the court would also consider foreign law.”³³ According to the authors of *Family Laws in Pakistan*, [i]n custody of children cases, Pakistani courts give paramount importance to the principle of the welfare of the child. This principle is also endorsed under Private International Law.”³⁴

²⁸ Sarkar Abbas, *Family Laws and Judicial Protection*, ¶ 17, S. Ct. Pakistan, <https://perma.cc/RL5R-FPYG>.

²⁹ Ali, *supra* note 21, at ¶2.4.

³⁰ For a summary of case law for recognition and enforcement of foreign custody orders in Pakistan, see Salma Begum, *Impact of Cross-Cultural Marriages on the Rights of the Child: Analytical Study of Shari'ah Rulings & International Legislation: A Case Study of Pakistan & United Kingdom* 174 (2017) (Ph.D. thesis, International Islamic University), <https://perma.cc/5EZZ-LDFM>.

³¹ *Pir Abdul Wahid vs. State*, Writ Petition No. 74048 of 2019, ¶ 26, <https://perma.cc/5KP4-E6AD>.

³² Ishaque & Khan, *supra* note 8, at 79.

³³ *Karachi: Child Custody in Foreigners' Cases a Nightmare*, *Dawn.com* (Aug. 4, 2008), <https://perma.cc/A9KX-RJWK>.

³⁴ Abbasi & Cheema, *supra* note 11 at 467; see also Begum, *supra* note 30, at 174.